

DAVID LOPEZ; ET AL. vs. AMERICAN HONDA MOTOR CO., INC.
Case No. CU25-09816

Motions to Compel

TENTATIVE RULING

The Parties are to appear to address whether Plaintiffs have submitted verifications as to any of their responses, specifically:

- (1) Motion to deem facts admitted and request for monetary sanctions.
- (2) Motion to compel responses to form interrogatories and request for monetary sanctions.
- (3) Motion to compel responses to requests for production and request for monetary sanctions.
- (4) Motion to compel responses to special interrogatories and request for monetary sanctions.

Even if Plaintiffs have submitted verifications to their responses, the Court will hear argument on whether sanctions should be imposed.

ROBERT HUGHES vs. PRO STEEL ERECTORS; ET AL.
Case No. FCS057451 (Consolidated with FCS057476)

AVILA's Motion to Substitute Personal Representative

TENTATIVE RULING

Plaintiff FREDY CASTILLO AVILA ("AVILA") moves to substitute in ZACHARY MOORE, solely in his capacity as personal representative of the estate of Defendant DANIEL MOORE, as a defendant in this case per Code of Civil Procedure section 377.41. DANIEL MOORE is deceased.

Code of Civil Procedure section 377.41 provides that a court may, upon motion, allow an action against a deceased person to continue against the representative of that person's estate so long as the plaintiff complies with Part 4 of Division 7 of the Probate Code (concerning creditor claims). Probate Code section 9370 (within Part 4 of Division 7) states that an action pending against a decedent at time of death may not be continued against the decedent's personal representative unless a claim is first filed as provided in Part 4 of Division 7, the claim is at least partially rejected, and the plaintiff applies to the court for an order permitting continuation within three months of notice of rejection. A creditor may consider a claim rejected if there has been no action on it